

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 09/23/2026

Court Room Rules and Notices:

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#	Case Name	Tentative
1	<i>Troop – Trust (2025-01477158)</i>	Motion to Quash Discovery Subpoena Respondent Kathleen Dorfman’s Motion to Quash Records Subpoena Issued by Petitioner to Kaiser Permanente Riverside Medical Center (ROA 25) is GRANTED. This action arises out of the Orin C. Narm and Sarah I. Troop Revocable Trust, dated July 19, 2017 (Trust). Petitioner Tanya C. Narm (daughter of Orin C. Narm) asserts she is a beneficiary of the Trust, entitled to notice and an accounting from Respondent Kathleen Dorfman, the current trustee of the Trust. Petitioner alleges trustor Sarah I. Troop is alive but is incompetent because she is suffering from Alzheimer’s and that such incompetence renders the Trust irrevocable so that Respondent, as trustee, has a duty to provide notice and account. (Prob. Code, §, 15800.) In connection with her petition, Petitioner issued a subpoena to Kaiser Permanente Riverside Medical Center seeking records relating to Troop’s capacity, including any “diagnosis of or treatment for dementia, Alzheimer’s Disease, and memory or cognitive impairment, from January 1, 2024 to present.” Respondent seeks to quash the subpoena on the ground the records are constitutionally protected medical records and are not relevant to the claims of the petition.

	A party to litigation “may obtain discovery regarding any matter, <i>not privileged</i>, that is relevant to the subject matter involved in the pending action ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code of Civ. Proc., § 2017.010, emphasis added.) Confidential communications between a patient and a medical provider, including examinations, diagnoses, and advice provided by the medical provider, are not subject to discovery. (Evidence Code, § 992 & 994 [a patient has “a privilege to refuse to disclose, and to prevent another from disclosing” confidential communications between the patient and the medical provider].) The subpoenas improperly seek privileged confidential communications, which are explicitly excluded from production regardless of relevance. There are exceptions to this general rule. For example, a person may waive the privilege by putting his/her medical condition at issue in the proceeding. (<i>John B. v. Superior Court</i> (2006) 38 Cal.4th 1177, 1199; <i>Vinson v. Superior Court</i> (1987) 43 Cal.3d 833, 842.) Here, however, Troop is not a party to this proceeding and has not put her medical condition at issue. So, there is no waiver. In addition, there is no privilege “as to a communication relevant to an issue concerning the condition of the patient if such issue has been tendered by . . . [a]ny party claiming through or under the patient.” (Evid. Code, § 996.) In her objection to the petition, Respondent repeatedly asserts Troop is not suffering from Alzheimer’s and is not incompetent. Those assertions only fall within section 996 if Respondent is claiming through or under Troop. The “through or under” language was addressed by one California appellate court as follows: “We think the words “of any party claiming through or under the person” refers to a person acting in a representative capacity. The meanings given to the word “through,” that is, “by means of; by the help or agency or; by the intermediary,” “<i>in the name of</i>” all relate to action on behalf of another. The meaning of the word “under,” that is, “subject to the bidding or authority of,” describes the power of the person being represented over the actions of the representative.”” (<i>Karen P. v. Superior Court</i> (2011) 200 Cal.App.4th 908, 914.)
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		Although Respondent does not assert any statutory or contractual authority to act as Troop's representative, she filed the motion to quash on Troop's behalf under what she asserts is her duty of loyalty as trustee to Troop as trustor. (Motion at 3:6-8; 5:7-16.) It appears section 996 may apply. However, that is not the end of the inquiry. Even if an exception applies, the subpoenaed documents remain protected by Troop's constitutional right to privacy. (Cal. Const., art. I, § 1; <i>Vinson, supra</i>, 43 Cal.3d at p. 841.) Whether documents protected by a right of privacy should be produced is evaluated under the following balancing test: "[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. The party seeking information may raise in response whatever legitimate and important countervailing interests [the] disclosure serves, while a party seeking protection may identify feasible alternatives that serve the same interests or protective measure that would diminish the loss of privacy." (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552.) Troop's medical records are protected by the constitutional right to privacy. Having weighed the various factors required under <i>Williams</i>, the court finds Petitioner has not identified any legitimate or important countervailing interest sufficient to overcome Troop's constitutional right of privacy in her medical records. Further, there are feasible alternatives that serve the same interests, including written discovery and depositions. Accordingly, the motion to quash is GRANTED. Respondent is directed to give notice.
2	Guerrero - Probate (2025-01529971)	Motion to Be Relieved as Counsel of Record Paul Horn Law Group, PC's Motion to Be Relieved as Counsel for Mary Ignacia Guerrero Mauri (ROA 54) is GRANTED.

		"Generally, an attorney has a right to end the attorney-client relationship, but when litigation remains pending, the court has control over such termination, in part to ensure that the client is not harmed—for example, by abandonment of counsel on the eve of trial." (<i>Flake v. Neumiller & Beardslee</i> (2017) 9 Cal.App.5th 223, 281.) This matter is currently set for trial on 12-08-26, which presents the possibility the client may be harmed if the motion is granted. However, "[t]he determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court" (<i>Manfredi & Levine v. Superior Court</i> (1998) 66 Cal.App.4th 1128, 1133) and the court exercises its discretion to grant the motion. The trial date, however, will be CONTINUED to March 2, 2027, at 9:00 a.m. in CMMC. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
3	Smith - Probate (2023-01344389)	Motion to Compel Further Responses to Request for Admissions
4	Mathews - Trust (2025-01502968)	Motion to Compel Further Responses to Special Interrogatories James C. Mathews, Jr.'s Motion to Compel William Smithson Mathews to Serve Further Responses to Special Interrogatories, Set Two (ROA 43) is DENIED as moot. The accompanying request for sanctions is also DENIED as the moving party failed to comply with Code of Civil Procedure section 2016.040, which mandates that "[a] meet and confer declaration in support of a motion shall state facts

		showing a reasonable and good faith attempt, either <i>in person, by telephone, or by videoconference</i>, to informally resolve each issue presented by the motion.” (Emphasis added.) The declaration submitted in support of the motion does not reflect any “meet and confer” attempt made in person, by telephone, or by videoconference. Moving party is directed to give notice.
5	Johnson - Trust (2024-01427023)	Motion to Quash Discovery Subpoena (2) Petitioner Tricia M. Johnson’s Motion to Quash Deposition Subpoena Served on the Kaiser Foundation (Billing), etc. (ROA 102) is GRANTED. Petitioner Tricia M. Johnson’s Motion to Quash Deposition Subpoena Served on the Kaiser Foundation (Radiology), etc. (ROA 103) is GRANTED. This proceeding arises out of a petition filed seeking instructions regarding the Patricia J. Johnson Revocable Trust dated February 11, 2019 (Trust). According to the petition, the settlor of the Trust, Patricia J. Johnson, passed away on January 8, 2023. (ROA 1 at 5:16-17.) Thereafter, her daughter Amy Lynn Bromley became trustee. Pursuant to the initial terms of the Trust, Amy was to receive 50% of the Trust assets and her brothers Steven Edward Johnson and Russell Phillip Johnson would receive 25% each. (ROA 2 at 3:18-27.) Under the terms of an October 2019 document entitled “Chattel Schedule,” Amy allegedly as to receive 100% of the real property (the primary Trust asset), while Steven and Russell would receive “Proceeds of Unsecured Promissory Note in the Sum of \$500,000 from Amy.” (ROA 2 at 4:23-5:14.) In September 2024, Petitioner Tricia M. Johnson, Steven’s wife, filed a petition (Petition) seeking, in part, to void the Chattel Schedule amendment to the Trust on the grounds of undue influence and/or diminished capacity. Steven had been

	diagnosed with dementia, so Tricia filed on his behalf pursuant to a financial power of attorney. (ROA 2 at 2:10-14.) Amy objected to the Petition on various grounds, including the assertion Tricia lacked standing to file the Petition because Steven lacked the capacity to sign financial power of attorney. (ROA 14 at 2:6-12.) Steven passed away in April 2025. (ROA 99 at 17:6.) Tricia is Steven's surviving spouse, the trustee of Steven's revocable living trust, and the nominated executor of Steve's will. (ROA 99 at 17:7-12.) In July 2025, Tricia supplemented her petition to assert her standing to pursue the petition as Steven's successor in interest. (ROA 21.) On December 29, 2025, the court confirmed Tricia had been substituted in as petitioner. (ROA 28.) In April 2026, Amy served a series of subpoenas, including the subpoenas that are the subject of the motions to quash currently before the court. The subpoenas seek Steven's medical records from Kaiser Permanente. Tricia's motions seek to quash the subpoenas on grounds of relevance, privilege, and privacy. Amy as the subpoenaing party bears the burden of showing a "plausible justification" for acquiring documents from a third party." (<i>Facebook, Inc. v. Superior Court (Touchstone)</i> (2020) 10 Cal.5th 329, 345.) She opposes the motions to quash on the following grounds: (1) the subpoenas attached to the motions do not show service on the subpoenaed party; (2) Tricia's standing remains at issue; (3) the motions cite Evidence Code section incorrectly cite 944 rather than section 994; (4) Steven's capacity is an issue in the case. The opposition seeks an award of attorney fees. The subpoenas do not seek documents relevant to the Trust or any issue raised by the Petition. Steven's medical records are relevant only to Amy's assertion that the power of attorney under which Tricia filed the Petition was void based on Steven's lack of capacity. Tricia, however, is now proceeding as Steven's successor in interest. (Code of Civ. Proc., § 377.30 et seq.) No dispute is presented by the pleadings as to Tricia's standing as successor in interest. Because the
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		pleadings govern what is relevant and in the absence of any opposition, the motions to quash are GRANTED. Tricia is directed to give notice.
6	Wessel – Trust (2021-01217028)	Motion to Dismiss
7	Rhodes – Trust (2025-01527303)	Joinder (2), Motion to Appoint Interim PPF, Motion for Suspension of Co-Trustee Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief, Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. The court makes no ruling on the various objections filed in connection with these motions (ROAs 91, 99, 108, 114, 119, 124, & 163) because the evidence objected to is not material to the court’s disposition of the motions. The court considers Eugene’s and Paul’s declarations only for the purpose of demonstrating the state of mind of the declarants, showing hostility and lack of cooperation between them. The court does not consider any of the factual evidence offered in those declarations for their truth. Eugene’s Request for Judicial Notice (ROA 71) is DENIED as the offered documents are not material to the court’s disposition of the motions. Eugene S. Rhodes (Eugene) ¹ and Paul M. Rhodes (Paul) are co-trustees of the Frank A. Rhodes, Jr. Separate Property Trust (Trust). The Trust requires two or more trustees to exercise their powers only by unanimous consent. (Exhibit A to ROA 2 at § 10.10.)

¹ Because the parties share a last name, the court refers to them by their first names. No disrespect is intended.

This proceeding was initiated in November 2025 by Eugene’s petition for instructions and other relief under Probate Code section 1722 (ROA 2). In March 2026, Paul also filed a petition, seeking to remove Eugene as co-trustee (ROA 17).

The details of the creation and history of the Trust are not necessary to this order. Neither are the various allegations and accusations made by the co-trustees against each other. Suffice it to say that, at this point, there is both hostility and lack of cooperation between Paul and Eugene as co-trustees of the Trust. (Declaration of Eugene Rhodes (ROA 13) at ¶¶ 9-10 (4:19-26), & 12-21 (5:3-7:6); Declaration of Paul M. Rhodes (ROA 32) at ¶¶ 9-22 (1:26-5:10) & 25-30 (5:20-7:9) & 34-38 (7:19-8:25) & 40 (9:9-18)).

By the motions before the court this day, Eugene seeks an order removing himself and Paul as co-trustees of the Trust and appointing a private licensed professional fiduciary in their place while Paul seeks an order suspending only Eugene as co-trustee of the Trust and appointing Peninsula Bay Trust Company in Eugene’s place.

The court has discretionary authority to suspend the trustees and appoint an interim trustee. (Prob. Code, §§ 15642 & 17206; *Schwartz v. Labow* (2008) 164 Cal.App.4th 417, 429-430.) A trustee may be removed “[w]here hostility or lack of cooperation among cotrustees impairs the administration of the trust.” (Prob. Code, § 15642(b)(3).)

The only things the moving parties agree on are: (1) there is both a lack of cooperation and hostility between them; and (2) administration of the Trust has been impaired. Accordingly, the court issues the following order:

ORDER OF SUSPENSION AND APPOINTMENT OF INTERIM TRUSTEE

1. Effective immediately upon issuance of this order, the court suspends Eugene S. Rhodes and Paul M. Rhodes as Trustees of the Frank A. Rhodes, Jr. Separate Property Trust (Trust). Eugene S. Rhodes and Paul M. Rhodes are referred to hereafter as the “Suspended Trustees.”

	2. The court appoints Stephen J. Donell as sole Interim Trustee of the Trust pending further order of this court. 3. Donell may exercise all authority granted to a trustee under the Trust, except he may not sell, transfer, or otherwise dispose of any real property assets of the Trust without prior court order or a writing signed by the Suspended Trustees and all beneficiaries of the Trust. 4. The Suspended Trustees are to turn over all property of the Trust to Donell within 14 days after today's date (September 23, 2026), including without limitation all books, records, account information, personal property, and any and all keys, passwords, and other items or information necessary to access any property or account of the Trust. 5. Donell is to take all reasonable steps to marshal, inventory, and begin managing the assets of the Trust in a prompt and diligent manner. The Suspended Trustees are directed to reasonably cooperate with Donell in the performance of his duties as Interim Trustee. 6. Donell shall not use assets of the Trust to pay his Interim Trustee fees or attorney's fees without prior court approval. 7. Donell may not join in this litigation or any other pending litigation relating to the Trust or initiate any litigation relating to the Trust without prior court approval. 8. The court sets a Review Hearing re: Bond for December 9, 2026 at 9:00 a.m. in Department CM08. Donell is to file and serve a report to the court by December 2, 2026, providing the court and all parties with information about his efforts to marshal Trust assets and the value of all property subject to bond. Petitioners and any other interested persons may file and serve, no later than December 7, 2026, a statement addressing the amount of the bond. The joinder (ROA 77) and opposition (ROA 78) filed by interested parties Trenton Rhodes, Ranee Rhodes Shackleton, and Parker Rhodes are subject to the ruling set forth above. The court will give notice.
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8	<i>Fullerton – Trust (2025-01532942)</i>	Motion for Judgement on the Pleadings
9	<i>Vitarelli – Trust (2020-01170389)</i>	Motion to Be Relieved as Counsel of Record Ross Law Group’s Motion to Be Relieved as Counsel for Laurie Baker (ROA 273) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court’s order as entered. Withdrawal will be effective upon filing of proof of service of the order.
10	<i>Rhodes Jr. – Trust (2025-01527301)</i>	Motion to Appoint Interim PPF, Motion for Suspension of Co-Trustee Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief, Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. The court makes no ruling on the various objections filed in connection with these motions (ROAs 91, 99, 108, 114, 119, 124, & 163) because the evidence objected to is not material to the court’s disposition of the motions. The court considers Eugene’s and Paul’s declarations only for the purpose of demonstrating the state of mind of the declarants, showing hostility and lack

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11	<i>Fullerton – Other Probate (2025-01532942)</i>	Motion for Judgement on the Pleadings
12	<i>Hurst - Conservatorship (2023-01310126)</i>	Motion to Be Relieved as Counsel of Record
13		